

CHAPTER 10

VIOLATION OF RIGHTS AND REDRESSAL OF GRIEVANCES



In Pakistan, addressing grievances is a vital part of ensuring justice, accountability, and the protection of rights. There are several ways individuals and groups can address grievances, whether related to the government, institutions, or other matters. Here are some of the primary methods:

1. Filing a Complaint with Government Agencies

• Public Complaints Commission (PCC):

– The PCC helps citizens address complaints against government departments, public officials, and institutions. This body ensures transparency and accountability.

• Ombudsman:

– The Ombudsman serves as an independent body that investigates complaints against administrative injustice or failures by the government or public officials.

– Federal Ombudsman deals with federal government-related grievances, while Provincial Ombudsman handles issues at the provincial level.

• Consumer Protection Laws:

– Pakistan has laws protecting consumers from unfair trade practices, and individuals can lodge complaints through consumer protection courts if their consumer rights are violated.

2. Judicial Redress

• Courts and Legal System:

– Individuals can approach courts for relief if they believe their rights have been violated. The High Courts and Supreme Court are the highest courts for addressing grievances related to constitutional matters.

– The Shariat Court can be approached if grievances are related to Islamic laws and principles.

– **Public Interest Litigation (PIL):** Public-interest cases can be filed in court to address larger issues, such as environmental damage or violations of fundamental rights.

– **Human Rights Cases:** If the grievance concerns a human rights violation, individuals can approach the Human Rights Cell of the Supreme Court.

3. Engaging with the Media

• Press and Media:

– A key way to address grievances is by raising them publicly through newspapers, television, radio, and social media. The media can bring attention to issues that may not be addressed through official channels.

– **Right to Information (RTI):** Citizens can use their right to access information (under Article 19-A of the Constitution) to obtain information and raise grievances regarding public institutions or government actions.

4. Petitions and Advocacy

• Petitions:

– Citizens can submit petitions to relevant authorities, such as government departments, the judiciary, or specific ministries. These petitions can raise concerns or demand action on various matters.

• Advocacy Groups:

– Non-governmental organizations (NGOs) and civil society organizations can advocate on behalf of people with grievances, especially for marginalized communities. These groups play a significant role in addressing social, economic, and political issues.

5. Direct Communication with Elected Representatives

• Approaching Local Representatives:

– Citizens can address grievances by directly contacting their Members of Parliament (Mps), Members of Provincial Assembly (MPAs), or local representatives. Elected representatives have a duty to raise issues affecting their constituents in the legislature.

• Public Forums and Town Halls:

– Elected representatives often hold public forums or town hall meetings where people can directly voice their concerns.

6. Non-Violent Protests and Demonstrations

• Public Protests:

– Citizens can organize peaceful protests and rallies to raise awareness about their grievances. These protests are often an effective way of calling attention to social, political, or economic issues.

– In the case of large-scale grievances, such as lack of basic services or human rights violations, mass protests can put pressure on the authorities to act.

7. Administrative Procedures

• Internal Complaint Mechanisms:

– Many public and private institutions, such as universities, banks, or hospitals, have internal grievance redress systems. Individuals can address their complaints through these channels, which are meant to resolve issues at the organizational level.

• Grievance Cells in Organizations:

– Government and private institutions often have designated grievance cells or help desks for employees and clients to submit concerns and seek resolutions.

8. Human Rights Commission of Pakistan (HRCP)

• HRCP:

– The HRCP is a prominent human rights organization that helps individuals and communities raise grievances related to human rights abuses and ensures that these issues are brought to public attention. They also monitor the actions of the government and institutions.

9. Online Platforms and Social Media

• Social Media:

– Social media platforms such as Twitter, Facebook, and Instagram are increasingly used to raise awareness of grievances. Hashtags and viral posts can bring national or international attention to important issues.

• Online Grievance Portals:

– The E-Government Portal of Pakistan allows citizens to file grievances related to the public sector directly online.

– The Pakistan Citizens Portal is an app-based platform where citizens can lodge complaints regarding government departments, and it promises redress within a certain timeframe.

10. International Bodies and Organizations

• United Nations (UN):

– If the grievance relates to violations of international human rights, citizens can

approach international bodies like the UN Human Rights Council. This is especially relevant in the case of violations of minority rights, forced migration, or state-perpetrated violence.

• **International Human Rights Organizations:**

– Organizations like Amnesty International and Human Rights Watch can sometimes assist individuals facing serious human rights violations, offering international pressure on governments to address grievances.